

WEEK 14 · RELATIONALITY AND TYING IT ALL TOGETHER

CLASS 2

Responsibility

READING 1

“Chapter 4: The Politics of Failure” and “Conclusion: Growing Up,
Moving On...” in *Inhabiting “Childhood”* – Balagopalan

Inhabiting "Childhood": Children, Labour and Schooling in Postcolonial India | Balagopalan

Week 14, Class 2

Chapter 4: The Politics of Failure: Children's Rights and the "Call of the Other" — pp. 122–154

Conclusion: Growing up, Moving on ... — pp. 181–188

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The Politics of Failure: Children's Rights and the 'Call of the Other'

In the early nineties voluntary organizations in Calcutta began to work closely with the police in relation to street children. Police brutality, in the lives of such children, has of course long been recognized as a key problem. Through regular training sessions, the organizations therefore tried to sensitize the police to existing laws and protocols in dealing with children, including informing them about the UNCRC and the need to involve the voluntary sector in police decision-making and rehabilitation efforts. With street children, the work involved having them recognize police violence as a blatant violation of their 'rights' and providing information on the steps they should take to formally register an incident.

However, this assumed a certain neatness in the discourse of 'children's rights'. The world of NGO planning and practice gets much more uneven and murky when looked at through the concrete unfolding of such actual events of police violence. A couple of months after the trainings, an incident at the wholesale market involving one of the Sealdah boys disrupted the very meaning of police violence that the trainings had assumed and worked with. This and other fragmentary incidents brought to light the ambivalence and tensions that attend street children's engagement with a rights discourse. In this chapter, I discuss these incidents to disclose the less-than-ideal unfolding of children's rights discourse within a postcolonial terrain. The existence of the Indian state and voluntary organizations as the formed publics of this discourse produces a paradoxical set of relations between marginal children and their rights, which includes, but is not limited to, the ways in which this new terrain of children's rights ironically constrains their lives in its tendency to construct them as 'victims'. As this chapter elaborates, the children's ambivalent adjustments to the voluntary organization's pedagogic efforts around 'rights' is less about their rejection of this

discourse. Instead, their uneven engagement discloses a perspicacious reading of the moral-political project of 'children's rights', including the particular 'anti-politics' that attends its unfolding in postcolonial India (Ferguson, 1994). What do street children's varied reactions to the rights discourse reveal in terms of their everyday lives? What might we learn both from the ways in which they deploy this new discourse and from our sense of discomfort when they appear not to make use of its liberatory potential? And how does their critical engagement with this new terrain of rights fittingly uncover its parallel domestication by the postcolonial state?

'He was doing his job and helping me'

The boys' forays to the nearby wholesale vegetable and fish markets would usually take place early in the morning. Adjacent to the station, Kole Market would draw farmers from the southern districts of West Bengal, who would travel by train to sell their produce here. By 5.30 AM, the narrow by-lane between the station and the market would be buzzing. Farmers who arrived in the crowded local trains would hold their produce close to them as they walked amidst several piles of vegetables being unloaded from trucks in the open space separating the north and south stations. Closer to the market several male and female vendors would begin setting up their stalls laying out bricks on the muddy sidewalk, on which they would place jute sacks partially filled with vegetables. The boys would make their way through this bustle with a casual purposefulness, commenting on the vegetables that appeared to be abundantly available that morning. When at the market, a quick movement of the eye by one of them would signal that it was time to split up. The boys would usually double up for these incursions, their partnerships pragmatically and profitably combining the relative anonymity of the newcomers with those who were more experienced and possessed detailed knowledge of the market.

Once inside the market, the boys would make their way through narrow lanes with vegetables piled high on either side. Resting on a concrete platform three feet high, the baskets of vegetables would be adequate to provide enough cover and distance from the vendors, allowing the boys to pace their way through them without raising much suspicion. The boys would often begin by picking the vegetables that had fallen on the floor during the morning's rush at the market. They knew that this clearing up would meet little resistance. However, given the continuous footfall on these narrow lanes, the acquired vegetables

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would be few and often not in the best condition. Usually the boys who were new to the Sealdah shelter would engage in the foraging from the market floor, and it would be the older boys who would advise them to do so until they acquired greater confidence, skills and a sense of the rhythm of the market. The more experienced kids would carry *seekhs*, or umbrella spokes, inside their shirts to delicately poke and take out vegetables from the expansive piles that rested on the baskets. These *seekhs* were sharpened at one end and made to measure to work like large needles. Each of the boys' skill would lie in knowing which vegetables to poke from the pile while not upsetting the entire arrangement. At times, depending on the vegetable, their skill would also lie in being able to spear through several vegetables in quick succession piling one on top of the other on the *seekh* – like a kebab – and, of course, to do all of this without getting caught. Lingered in front of a pile would raise immediate suspicion, so they would walk, repeatedly poke, pull out and deposit into their shirts in one steady motion, making the choice of vegetable appear instinctive rather than an expertly calculated guess that practice has perfected. Their shirts, of which the first three buttons would be open and the rest tucked into their shorts, would serve as a ready-made bag; some of the more adept ones would tuck an open bag under their shirts. Once the shirts were full, they would be emptied into the companion's bag and the exercise would begin again.

Their companion, in the meanwhile, would find himself a good spot and set up a stall outside the market. He would arrange the vegetables on the floor, usually on an old shirt or bag, and then sell them at discounted prices to the local consumers. If caught, the boys risked getting yelled at, or beaten at worst. But the mundaneness of their daily forays also meant that some vendors learnt to accept their presence and turn a blind eye. Getting caught at the nearby wholesale fish market – where prices were steeper – would usually exact the most severe punishment, with the vendors at times calling the police. But the boys would often be willing to risk this because the margins of profit on fish were far greater and therefore less time-consuming. And there was also the added pleasure of a skilled transgression in acquiring a whole fish.

One morning the children rushed into the shelter with an injured Jehangir, who had been caught taking the fish. The shopkeeper had tied him upside down and beaten him until the local policeman arrived and convinced the shopkeeper that an arrest was less effective than a public thrashing, as the latter would serve to deter other children, who also lingered in the market, from stealing. The policeman thrashed Jehangir for at least five minutes before untying him and asking the

boys to take him back to the shelter. The boys also recounted that during the entire time, the policeman and the shopkeeper kept loudly cursing the boys, saying things like how nothing would ever come of them because they were born to be on the streets and steal. Jehangir's arm was bleeding quite profusely, and the staff immediately administered first aid. Later that afternoon when Jehangir had recovered, we talked about what had happened that morning, with the staff urging him to press charges and reminding him that the policeman had violated the protocols of the Juvenile Justice Act. Jehangir listened patiently and then in a voice that barely masked his irritation said,

My being arrested would have been much worse. In the lock-up worse things happen. He was doing his job and helping me. This is why he beat me at the market itself. I know him and he knows me. I often run small errands for him when I am on the station platform. At times he has given me a blanket to cover myself at night.

This incident with Jehangir provides a classic instance of what conventionally would have become a case of a 'rights infringement'. However, it is one in which the aggrieved party evokes the sentimentality of priorities to abandon claims he can make as a legal subject. The redress of the violence between perpetrator and victim that children's rights discourse makes available appears to be rejected in Jehangir's unwillingness to draw upon his ability to file a complaint. Instead, his relationship with the policeman was part of an affective terrain of support networks that street children usually develop to provide their lives with meaning, stability and protection (Aptekar, 1989; Ennew, 1994a; Swart, 1990). Children's rights discourse, by beckoning the child to get legal redress, highlights the compromised and exploitative side of these supportive relationships, strongly indicating to Jehangir the moral superiority he commanded as a 'child' figure. But Jehangir's insistence that the policeman was 'helping him' signals a certain density of relationships, connections, survival and enterprise that marked his life at the station, all of which appear to sit uneasily against his more recent entanglement with a rights-based recourse to justice through legal means.

In the past two decades the idea of children's rights has gained increasing acceptance around the world in conjunction with transnational, governmental and NGO efforts to protect those represented as vulnerable and promote their rights. An impressive amount of research and writing on children's rights is a reflection of the growing recognition of the impact of this new discourse in framing global understandings

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of young people's lives. Jehangir's incident reveals that their everyday lives at the station involve street children in a continual negotiation of incidents of violence and exploitation, but these seldom unequivocally register as incidents in which they feel 'victimized'. Instead, it appears as if this newly introduced language of their 'victimization' and their 'rights' circulates lightly upon a thicker set of rationalities, which reflects a more complicated web of a kinship-based idiom of sociality that is not easily legible to this register of rights and individualized childhood. The strong hold exercised by Jehangir's identification as a member of the station's larger community complicates the abusiveness of the policeman's actions. It highlights his more intimate knowledge of the policeman as a caring person, who had once offered him a blanket at night. In this station community, where the policeman was more than a state functionary and where physical violence was not unilaterally viewed as a 'rights violation', it is in fact its logic of redress that appears as a distant and more intimidating means of gaining justice. Jehangir's incident is paradigmatic of the differences that mark the circulation of children's rights discourse in postcolonial contexts. To attend to the complexities of these differences, the next section briefly engages current research in the field of 'children's rights' to reveal the difficulties posed by its continued investment in a universal biologically determined 'child' figure.

The existing terrain of research on children's rights

As a globally agreed-upon set of entitlements that children should have and exercise, 'children's rights' simultaneously marks the 'child' figure as one in need of 'protection' through the 'provision' of certain entitlements as well as secures children's 'participation' in their being able to act upon these entitlements. As it is children's biological immaturity that frames the need for a separate set of entitlements, the domain of children's rights works within a paradoxical set of compulsions. On the one hand, discourses on children's rights prioritize actions taken by respective national governments in legalizing and implementing the entitlements enshrined in the UNCRC. On the other hand, unlike the universal and normative adult subject of rights, who can potentially contend against the state's less than adequate drafting as well as implementation of national legislation, the (biologically and cognitively) 'immature' child makes this a more difficult endeavor. As a result, present efforts of the state's around drafting and implementing laws concerning children

get recalibrated as having secured for children their 'rights'. Connectedly, it frames children's 'exercise' of rights as their acting in accordance with these national laws. Within this striated logic, in which the child's 'agency' mutually reinforces the legislative actions of the state, it is a form of analogous thinking about children and their rights that has dominated the emerging field of research. Current writing on children's rights can be tentatively classified into three generally separate though inter-related domains of enquiry, none of which addresses the tensions of its circulation in a postcolonial context. These broadly include a 'philosophical' enquiry on rights and children, the 'pragmatic' focus on implementation of specific provisions and a 'participatory' focus on the child as an agential subject capable of exercising his/her rights.

The first and earliest of writings on children's rights (which precedes the UNCRC) is a query on whether at all children have rights, and if so, what children's rights might signify more broadly (Archard, 1993a, 1993b). These broad philosophical interpretations of children's rights, as Archard discusses (2002), usually lend themselves to a non-adversarial position on welfare provision. There is, on the one hand, the view that reads rights as a matter of justice and, therefore, as that which is owed to children. This point of view, which borrows from Rawls (1971), makes an argument that the allocation of welfare that best reflects children's life prospects is most ideally pitched at the level of the family. This argument has even made distinctions between 'initial genetic endowment' and 'post-conception' inputs, with theorists like Brighthouse (2002) strongly discussing the need to protect children's fundamental interests much before they are born. On the other hand is an argument which broadly constructs children as the property of their parents and includes the viewpoint that children should not have rights until they are capable of exercising agency (Griffin, 2002).

Though there exists a division between interest and choice models of rights, they both underscore an ontological 'child' figure constructed primarily within the power of an assumed universal biology of physical age. The 'exemptions' to certain clauses that nation states negotiated before ratifying the UNCRC introduced a certain 'cultural' complexity to the universal construction of the child figure. This generated a body of critical writing that critiqued the UNCRC as having implicitly deployed a western-bourgeois ideal of childhood as the norm (Boyden, 1997; Nieuwenhuys, 1998). However, this culturally mediated recognition of the child failed to exercise the desired critical effect as reflected in research that continues to document the ways in which traditional

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child-rearing and socialization practices in different societies impinge upon the implementation of the UNCRC (Parry-Williams, 1993). In effect this viewpoint further entrenched the normative ideal in the form of a more broad-based 'enlightened universalism' in relation to the 'child' (Freeman, 2002).

Authors working in the second domain of enquiry have more empirical research interests that are concerned with gauging the extent to which processes of 'implementation' and the resultant realization of children's rights are being achieved by various nation states. Primarily interested in disclosing structural and bureaucratic roadblocks to 'implementation', such authors understand these obstacles in terms of poor governance, inadequate national mechanisms and faulty procedures. As a result, this lens has worked to leave uninterrogated the nation-state framework that marked the drafting of the UNCRC. This includes authors who have focused on the processes of drafting the Convention (Grover, 2004), the effectiveness of mechanisms for annual reporting by states (Scherer and Hart, 1999), inadequacies in addressing the needs of specific populations of children (Pare, 2003), and so on. Within this framework, the extent to which various articles of the UNCRC are adopted into national laws (Kent, 1987) becomes the focus of study. Discourse on children's rights, particularly in non-western contexts, is as a result dominated by an optic that focuses on individual nation-state's provisioning of UNCRC's various clauses. Existing writing that offers a regional perspective on children's rights provides several empirical details on national legislations regarding children (Goonesekere, 1998) but has very little to say on the particularities of a postcolonial circulation of children's rights discourses. Seldom venturing beyond the comfort zone of policy setting, this reading elides, for the most part, the ways in which the provisioning is both translated and understood by children (Hanson and Nieuwenhuys, 2012). This, despite the fact that, from the vantage point of marginal children, this otherwise remote and reified sphere of transnational humanitarian goal-setting, of which children's rights is a part, has come to assume very real and tangible effects in their everyday lives.

Theoretically speaking this state-focused and policy-burdened research might have been destabilized by the third domain of enquiry, which draws attention to the child itself and is concerned with giving children a 'voice'. This body of work is focused on the need to provide children with an active capacity to speak and narrate their lives as a way to facilitate a more participatory promise of equality (Kufeldt, 1993). The idea of 'agency' contained within children's rights is primarily

linked to a somewhat naïve reversal of an earlier reading of children's abilities as restricted by their biological immaturity. This simplistic turn-around, through the figure of the agential child, of the earlier assumption of the lack of agency in children has resulted in a vast amount of methodological writing. This kind of research did provide more room to unpack the 'child' as a figure that is seldom outside of the shifting mediations of gender, caste and class interests within nation-states. But its unproblematic use of 'voice' as the site of a transparent truth exposed the flimsiness of both its ethical and methodological rigour. More recent writings on children's 'agency' have urged a moving away from earlier assumptions around the 'authenticity' of children's voices to a more critical stance that takes cognizance of the ways in which language shapes, delimits and mediates the child's interaction with the adult (James, 2007; Spyrou, 2011). However, what continues to remain unaddressed within this new recognition of children's abilities to speak (as well as our capacities to hear them) is the underlying assumption that all children possess a rights-based subjectivity, and this is of critical importance in understanding marginal children's interactions with this new terrain in postcolonial contexts. It also helps explain why the state's eagerness and urgency around 'children's rights' has an ambiguous and less than ideal resonance in a postcolonial terrain, thereby opening up a conversation around what is missing in our present engagement with this ideal-liberal horizon.

As a straightforward plea for social justice, the above dominant strands of children's rights tend to read all children as capable of exercising rights. The substance of an international treaty such as the UNCRC is to assert the equality of all children around the globe through certain basic and agreed-upon entitlements or rights. However, the reverse side of this equality is the underlying assumption that these rights will translate across space-time and can therefore be exercised by any population for whom they have been drafted. By 'translate' I refer less to the content of particular rights nor their implementation, as these involve legislative and judicial interpretations around 'children's best interests'. It might also include children in a pedagogic exercise, teaching them the specifics of rights to which they are now entitled. Instead, I am referring to the underlying notion of comprehensibility related to the assumption that the capacity to exercise rights is self-evident to persons throughout the globe, including children. Linked to a particular image of an autonomous rights-based subject, naturalized in the modern west, it is this that is now being universalized through a normative 'child' and the heightened recognition of children's 'agency'

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or their active abilities to assert their 'rights'. It is the acceptance of this subject position as a transcendent truth within children's rights discourse that limits 'cultural' analyses of this new discourse to a reading of the acceptability of certain articles of the UNCRC in various national-religious contexts.¹

Post-structuralist and postcolonial theorists, over the last several decades, have quite systematically eroded universal assumptions on the liberal subjectivity that underlies rights discourses. By developing an impressive body of writings that foregrounds the discontinuities and violence of the colonial past as a key moment in both the universalization of modernity's key injunctions on equality, rights and freedom, and their drastic interruption by colonial rule, postcolonial theorists have highlighted the historical dimension of subjectivity (Chakrabarty, 2000, 2002; Chatterjee, 2004; Spivak, 1992, 1999). They have brought attention to the contested nature of representations, identity formations and the violence that formed part of the constitution of the colonial and metropolitan subject. This historical deconstruction of the subject has been a critical contribution of south Asian historiography, with members of the Subaltern Studies collective moving away from their earlier anticolonial theorization of the figure of the subaltern as a subject of their own history, to incorporate Spivak's (1988) critique on questions of patriarchal complicity in the construction of the subaltern as a legitimate and audible historical subject (Morris, 2010). Their moving away from the figure of the subaltern as possessing a sovereign subjecthood to instead prioritize its non-universal circulation, as well as recognize the constitutive place of gender in the formation of the subject, has radically re-inscribed our understanding of subjectivity in non-western contexts. This includes re-analysing 'citizenship' and its attendant assumptions of autonomous rights-based subjectivities as the particular work of history in the modern west. Its unfolding in the colony is not a delayed modernity waiting for the magic touch of modernization and enlightened policy-making, but more a rewriting of some of these liberal imperatives, thereby complicating the politics of identity and recognition that underwrites rights discourses.

The postcolonial deconstruction of the subject has had a perverse circulation within the field of childhood studies through the idea of 'multiple childhoods' that in large part reinforced a culturally relativistic account of childhoods in the non-west. This is particularly true for children whose lives did not match up to modernity's broad injunctions on compulsory schooling, separation from labour and secular forms of play. By ignoring the critical role played by the very

unfolding of modernity in the non-west on the formation of the state, the everyday lives of these 'cultures' and the attendant subjectivities of both adults and children, 'multiple childhoods' unintentionally reinforced an ineffective, and by now outdated, way of situating the argument.²

As Jehangir's engagement with children's rights disclosed, the stubborn trace of the particular upon universal claims is seldom a complete rejection of the power that underwrites these claims. Jehangir's response should not be read as a particularist or a culturally relativist argument to discuss the inappropriateness of 'rights' as that which holds true across cultures.³ Instead, it is a recognition of the absence of the naturalization of rights in most people's lives in postcolonial contexts as well as of the 'cultural translation' that attends this rights discourse and the 'friction' produced by it (Tsing, 2005).⁴ The broad acknowledgment that law works unevenly allows for the recognition that the sphere of the legal is often experienced by subaltern communities as regulative and authoritative, and not necessarily as emancipatory, even though the intent of specific legislation might be to ensure their rights. On the one hand, the inability of current research on children's rights to work with this reality is largely because it constructs this unevenness as a 'lack', working with the gap between policy and reality as the absence of efficiency in the global south, rather than engaging in a historical exploration of its complexities. On the other hand, postcolonial scholarship's extensive and wide-ranging critique of subjectivity has either ignored the figure of the 'child' or subsumed it within existing historical research on community, caste, family and gender identities. With labouring children like Jehangir increasingly becoming the site of a new sentimental politics regarding children's rights, postcolonial research on subaltern lifeworlds can no longer ignore the ways in which the growing global-national moral weight exercised by the figure of the child, including children's increasing access to schooling, compels existing studies on family, community and caste socialities to engage more candidly with this figure.

A case for the significance of this engagement is made in Jehangir's simultaneous insertion into a global discourse of rights along with his active crafting of relationships within his subaltern lifeworld. It immediately draws our attention to how ordinary practices and relationships sustain lives on the street and allow children like him to more than just survive within the structural violence of unjust and inequitable economic and social arrangements that are now sought to be recalibrated within a global logic of reform. The latter's sensationalist reading

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of street children as 'victims' ignores the contours of an ethical self-fashioning with which we might read the coherency of their lives. Here I refer to the emotional sustenance that the children draw from their family ties, which include both the claims made by their fictive families at the station for their loyalty and affections, and the continued ties with their genealogical families. What allows for this emotional bond to persist despite the physical, and more often than not mental, distance that develops between the children and their families is the moral import these children invest in their exercise of 'responsibility'. Broadly characterized as the mutual cultivation of caring, the next section discusses responsibility as something that continually grounds street children in developing networks of trust, in living out non-contractual exchanges, in which both the risk of being exploited and being taken care of coexist. In this space of 'relations of responsibility', the children carve out moral lives within what appear to reform efforts as illegalities, improprieties and misdeeds.

On exercising responsibility

At one level, learning to become responsible is an important aspect of children's socialization in the modern west and is viewed as contributing, amongst other virtues, to self-discipline, tolerance, the public use of reason and the development of self-restraint. Interpreted as 'duty', 'responsibility' is a crucial component of liberal subjectivity that coexists effortlessly with, and in fact complements, the idea of a rights-bearing subject, seldom impeding individual self-realization. Studies on adolescent morality in the US often include adolescents' awareness and exercise of responsibility as a critical indicator in their moral development (Hart, Atkins and Ford, 1998). However, when 'responsibility' is used to read marginal children's lives in non-western contexts, it is usually a shorthand for its overwhelming control and determination of lives. Interpreted as expectations that bind children to families and communities, responsibility is often viewed as the zone of the non-modern, of a gendered tradition that inhibits these children's free and self-interested movement. Rights have often been invoked as the antidote to this burden of responsibility, particularly in the case of child labourers and the work they undertake in order to contribute to family expenses. Within the new rights-driven interest in the lives of marginal children in postcolonial contexts, their resilience remains flattened out as only the spectral sign of their victimization. A 'rights approach' often constructs this sensibility as their unnatural response to difficult

circumstances and, therefore, of secondary consideration. However, as this section reveals, 'responsibility' circulates as something that children are viewed as capable of and obliged to exercise. Children's everyday lives are animated by this shared idiom of responsibility which they inhabit as 'children' but is inseparable from their insertion in a community, not taken in a fixed sociological sense but always in formation through the art of living in the margins of postcolonial development. It is a life in which authority figures appear as ambiguous, families seem to be less protective, small kindnesses are felt more deeply and friendships are intense as well as short-lived. The astuteness with which they learn to navigate these tenuous set of relations and the evanescent possibilities it offers, while not becoming easily undone by its well-recognized perversities, is because of the keen sense of responsibility that undergirds their immersion in these margins.

That the self-image of street children is not necessarily foreclosed by their 'victimhood' began to find greater empirical support from the early nineties onwards with new survey research. This research, by pointing to assumptions of children's continued ties with their families as being grossly underreported, highlighted the inconsistencies in prevailing understandings of them having been 'abandoned' (Glausser, 1997). The empirical reality of street children in the twentieth-century west as primarily being survivors of sexual abuse had been typologized and written across the globe, and the new research rectifies this by highlighting that a majority of children in the global south are on the street only temporarily and return home to their families either every evening or more intermittently. Some form of continuing ties with the family characterized most of the lives of the children at Sealdah, broadly framing them as child migrants, though their situation was not typical of existing research on child migration in India. Within this research, children's migration for labour usually happens as part of the family for seasonal agriculture work. Or, as in the case of the Udipi hotels in Mumbai and Bangalore utilizes existing caste networks and prior extended histories of migration to set up opportunities for children to migrate to urban locations to take up particular occupations (Iverson et al., 2002).⁵ In contrast to this, the Sealdah street children's migration into the city was a more complicated mix of coincidence, risk and impulsive decision-making.

Usually rumours of children having left for the city were substantiated by boys from the neighbourhood, who attracted immediate attention and envy during their return visits to the family. These boys, with their new self-styled personas and access to flashy clothes and gadgets,

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spawned an immediate desire for emulation among the more adventurous in the neighbourhood. Soheil, a child of around twelve, discussed how he crossed the Bangladesh border with the help of Farouq, who, having done this a couple of times, was an old hand. Farouq agreed to take Soheil along for a small fee, which Soheil began to earn by skipping school and then finally stealing from home. On returning home the following year, Soheil found Chotto Shankar, who lived in his neighbourhood market. Chotto Shankar lived alone and appeared to have no family or extended kin network. Soheil had heard about Chotto Shankar's skill as a pickpocket, including his talented use of the extra little finger on his right hand for this job. It didn't take long for Soheil to convince Chotto Shankar to follow him to Sealdah. As Chotto Shankar didn't have enough money for the travel, Soheil managed to strike a deal with him to evenly divide for the first six months his earnings from picking pockets at Sealdah. With Chotto Shankar underreporting his earnings and Soheil charging exorbitant interest rates, the initial entry into the station served as a constant source of tension between them. However, this was not always the case. Jahed, a child of thirteen, who often slept on the platform so that he might earn in the market in the evening, discussed the less fraught network that brought him to Sealdah:

My house is in Budge-Budge. Khuddus' house is close to mine and I would see him leave with his mother and not return for several days, and so I became curious. Food was not a problem at home because I worked at a tailoring shop that my father set me up in. I earned Rs 10 a day and they fed me as well. I would give my father all my money, but then one day my father left us. When my brother and I asked my mother, she said that he had gone somewhere; only later did she say that he had decided to marry again and would never return. This meant that we needed more money at home, and Khuddus told me about a job pushing *thaelas* from Sealdah station to the market for about Rs 20 a day. Now I stay at the shelter and work at the market. *Ami maa-ke taka di.* [I give my mother my earnings.]

The attraction of the station lay in its bustle, which contained countless employment opportunities for the new entrant into the city. Boys like Jahed found their way using this to earn an income for their mothers, whom they periodically visited. Unlike Jahed, Khuddus was one of many boys who had been brought to the Sealdah shelter by their mothers.

As women who commuted daily to earn a living in the market, they viewed the shelter as a safe space, and the children as they grew older chose to stay at the station. Khuddus, the oldest boy in his household, initially attended the local government school in Budge-Budge when his father was alive, but after his father's death, he dropped out of school to help his mother earn an income and look after his siblings. His mother bought fruits at Sealdah's wholesale market and sold them in Budge-Budge. After a couple of months of daily commuting by train, he and his mother decided that it would be better if he stayed back at the station and looked for extra work. He lived at the school and met his mother daily, often returning to school with some fruit that she saved for him. Discussing his situation he said,

It is because of the money that I give my mother that my younger brother is able to attend school. I feel proud when I see his English books when I go home. Even though I may not know how to spell and read in English, he does, and it is because of my help. My mother tries to come and see me every day and always brings something for me to eat. She knows that if I stay at home the money that I can now give her would be severely reduced and so she does not want me to stay there. Moreover, I am not sure if I can stay at home after having been here for so long and getting used to a life of earning.

Though the new literature on children's migration does not capture the detailed material, symbolic and affective conditions of migration for boys like Soheil, Jahed and Khuddus, the discussions on the self-image of migrant children significantly overlap with a majority of the children at Sealdah. The confidence and pride child migrants feel about making decisions, acquiring skills and contributing to the household (Young, 2004) were often echoed by the Sealdah children. Quite surprisingly, this was also true in the case of children whose initial decision to leave home was linked to heightened incidents of physical violence, usually involving their fathers or older brothers. The children's singling out of physical punishment often appeared paradoxical given the continual efforts they made to keep in touch with their families and the regularity with which they returned home. Hidden in this paradox was their reconciling this violence within a particular past, marked by their father's excesses and their own mischievousness, with their decision to return home in a new capacity, namely, an earning member, effectively reconfiguring the relationship without abandoning it. The productive tension between viewing children on the street through the lens of

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prior violence and abjection and an alternate reading of their presence as also motivated by more affective and relational concerns allows us to understand how their absorption in a life of *khatni* is made socially meaningful. At the same time, their continued ties with their family allow street children to view the street as temporary and not read their lives as narrowly determined by the original event of separation from their families.

While children like Khuddus and Jahed regularly gave their mothers the bulk of the money they earned, most others worked hard to earn extra money right before festivals like Eid and Durga Puja. Calculations about wages, duration of work and choice of where to work before these festivals were decisions that were often shared by the boys based on their previous year's experience or the gossip they heard from peers at the market and the station. Often, the *melas* that had set up a temporary base in different parts of the city offered easy employment, though the work itself was exhausting. The low-skilled job that usually paid the most during this period were the semi-mechanized children's rides, like the merry-go-round and the giant wheel, that the children had to spend entire evenings maneuvering, surrounded by loud decrepit pumps that spewed kerosene. Younger children could not undertake this kind of work on their own, and so partnerships were often forged during this period that began in the day earning at the market and continued into the night at the *mela*. The attendance register at the shelter plummeted before Durga Puja, as the boys often huddled on Platform Number 10 calculating how much they needed to earn. They figured out the cost of shoes and shirts they had seen at the nearby Chor Bazar, outlined their gifts for family members and decided how much cash they wanted to carry home depending on the current predicament of their families, including celebrations, ill health, the education of younger siblings and a bad agricultural season. Even if briefly, the relationality of market exchange got perfectly aligned with a gift economy (Mauss, 1990).

On returning to Sealdah after the celebrations their savings had often helped enhance, the boys would spend days recalling to each other the thrill with which their gifts had been received, their financial contribution to a younger sibling's continued schooling, their purchase of medicine for a sick parent and the impression their clothes and transformed demeanour had made on the persons they met. While in some families there was a history of older siblings having made the journey into the city, usually these boys were considered pioneers. The dependence on their income by their families also included within it a respect for the connectivity they were viewed as providing between the

village hinterland and the city. Though these children did not live at home, their earnings and occasional presence actively reproduced the stability of the family and reinforced these boys' belonging within it. Their long absences were seldom viewed by their families as disruptive but more as indicative of the hardship and sacrifice the children were undertaking to enable their kin to continue to survive. Hardly a case of 'abandonment'.

This is in stark contrast to the regulated experiences of freedom in the lives of bourgeois children, who even manage to produce their adolescent 'rebellion' as a necessary and age-specific psychosocial response. Within this framework, children's violation of adult-driven norms has come to be viewed as an essential part of their personal growth, their phase of 'identity crisis' and, therefore, an acceptable infraction, as it affirms one of the stages in their development into adulthood (Erikson, 1968). Quite paradoxically, street children, though having left home quite young, do not try to signify their rebellion with this definitive gesture. Instead of a disjunct, they view this as part of a continuum that allows them to return to their families as adept city dwellers.

My drawing attention to the street children's everyday webs of sociality is to situate these lives within more complex moral lifeworlds than the pragmatic minimalism we usually associate with child labour. The children's crafting of selves with an embodiment of 'responsibility' is to reposition their assumed victimization within more than just a corporeal memory while not obfuscating nor denying the exploitation contained in their class-specific insertion into labour. Gayatri Spivak (2005) insightfully undertakes this more extensive deployment of 'responsibility' in her discussion on the 'social Darwinism' of human rights. Utilizing a heuristic binary division of the globe into 'rights-based' and 'responsibility-based' cultures that respectively map on to the modern west and the rest of the ex-colonial world, she argues that human rights allows those in the west to view as 'manifest destiny' their role in improving the lives of others. In stark contrast to this universal mode in which human rights circulates, discussions on 'responsibility' are often relegated to a relativist or cultural reading.⁶ Through her reading of this 'civilizational mode' of human rights in the west as sustaining class apartheid, Spivak attempts to foreground responsibility as a way of life that has global potential. She does this with a focus on two different, though interconnected, dimensions of the issue at hand. The first are the geopolitical structures that allow for each of these particular cultures to appear as self-evident to their members. Within this self-evidence what gets universally privileged is the rights discourse, thus dividing

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the world into those who are poised to right wrongs and the 'receiving groups' among whom wrongs proliferate. The second is her analysis of responsibility as the 'lost imperative' within post-capitalist societies. She juxtaposes the juridical-citizenship inflected understanding of rights that forms part of the modern west against the ability of being defined by a less formalized and a less contractual mode of reciprocity that she defines as the 'call of the other'. For Spivak, 'responsibility' is always open to 'the call of the other', in which hearing the latter is not formally learned behaviour but a sensibility.

This framing moves responsibility out of its intimate connection with lives in 'pre-capitalist societies' and brings it into discussion as a desirable mode of being that needs to be nurtured and not forgotten in the modern west. To further make her point, she distinguishes responsibility from the idea of 'duty' invoked by Churchill in his aphorism, 'the price of greatness is responsibility'. This particular evocation of duty, according to Spivak, is precisely the widely prevalent episteme of a rationally induced sense of liberal benevolence that human rights discourses contain. Instead, within subaltern communities, the question of responsibility 'is being called by the other before will'. Before will, or prior to intent, is central to her argument, highlighting the aporia between ethics and politics that responsibility foregrounds. Ethics within this is not individuated agency, calculating with liberal certainty the politics of correct action. Instead, in her naming of subaltern practices as 'responsibility' Spivak highlights that agency is not limited to rational acts undertaken by an individual. Practices of responsibility are as much agential, are as much about techniques of the self and are both outside of the self and in the self, 'half-archived and therefore not directly accessible'.

Street children's continued ties with their families signify the materialization of this sensibility in their everyday lives. Spivak's discussion of responsibility as agential but also 'half-archived' points to its circulation less as learned behaviour and more as a dominant idiom that works to continually limit, deflect and protect members against economic and social vulnerability within communities of kinship. In these children's lives responsibility belongs to the order of the idiom and the sensibility of reciprocity and kinship and not to the sum of individual acts of duty. It is, therefore, defined by a less contractual as well as a less rational mode of being. Not surprisingly perhaps, these children's exercise of responsibility, given their lives on the street and their being outside the webs of a formal incremental learning of freedom, appears to contradict Piaget's (1958) well-known theory of

child development as well as Kohlberg's stages of moral development, including the universal constructions of 'the child' these rest upon (Burman, 2008). For example, in Piaget the earlier heteronomous stage refers to younger children learning moral behaviour by a rigid adherence to rules and authority, while in the autonomous stage they begin to reason about fairness via interactions with others. Moral judgment based on reason does not appear to characterize these street children's exercise of responsibility, and perhaps a closer fit can be found with Carol Gilligan's (1993) critique of autonomy in her 'ethics of care'. Gilligan's crafting of an 'ethics of care', in which the child's moral development arises from the recognition of a relationship, or relational judgments based on compassion, introduces some space for the non-rational child. Her critique of Lawrence Kohlberg's six stages of moral development in children led Gilligan to institute instead a division between an 'ethics of care' and the 'logic of justice'. While the former relies upon a network of connections, the latter depends on an abstraction of the moral problem through recourse to justice with the help of the law. In her re-analysis of the child Amy's narrative, Gilligan, unlike Kohlberg, does not find a child who is immature but instead secure in her sense of self. This child can, as a result, make confident judgments as well as understand the irrational weight exercised by networks of relationships. Of course, Amy's 'ethics of care' developed out of her deliberations on an abstract dilemma that was presented to her rather than from her living in the dense vicissitudes of networks of relationships. But I extend Gilligan's identification of this non-rational aspect of caring in a child's moral development to Spivak's framing of responsibility to highlight responsibility as less about a street child's 'cultural' response to mitigating circumstances and more as something that all children (and men and women) are capable of exercising. John Wall's (2010) discussion on rethinking moral obligation in light of childhood appears to also contain the possibility of a shift away from a reading of responsibility as learned behaviour. Recognizing that any argument grounded in rational autonomy will tend to marginalize children, Wall instead borrows from phenomenological ethics the idea of 'disruption' rather than 'agency'. He utilizes 'disruption' to draw children into a more expanded creation of self-other relations within a process that is circular rather than linear, a moral ellipse, that would allow for a decentring of the self.

This process of decentring, in a somewhat different way, has also more recently been developed by David Graeber (2011) with his brilliant exposition on 'debt' in the context of the post-2008 collapse of

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capitalist economies. Using 'debt' to ask the larger question of what is the very basis of being human in relation to the world, Graeber provides a poignant refutation of the primary assumptions of the economic theory of life. He focuses our attention on a set of practices that draw chiefly upon the anthropological theory of the 'gift' that has developed out of Marcel Mauss' work (1990). Such a theory displaces the modernist binary of 'self-interest' and 'altruism' (the opposed conditions of being an 'individual') by posing a 'self' that is always, already derived in its obligatory recognition of and by 'another'. This allows Graeber to retrace the anthropological deconstruction of the 'restricted-ness' of the special case of contractual (commodity) exchange and its historical reliance on organized violence. Graeber's further development of 'everyday communism' to discuss relationships of reciprocity and mutual expectations in post-capitalist societies connects squarely with Spivak's framing of responsibility as the lost, and not necessarily absent, imperative. 'Responsibility', when broadly engaged with as an ethically desirable way of being that indexes certain forms of sociality and reciprocity that have been forced aside in increasingly contractual, commodified and transaction-based forms in capitalist cultures, opens up the possibility of a more epistemic engagement with the lives of marginal children in the postcolony.

For the children at Sealdah, the density of kinship affirmed responsibility as that which developed and sustained their sense of self, their self-interest indelibly tied to a caring for others. Despite their being absent from home for a large part of their formative years, the plainness with which the children's sensibility functioned was revealed in the fact that they neither viewed their lives on the street as a betrayal by their families, nor did they experience the street as an abyss of doom. While an instrumental interpretation of the money and gifts these children brought home during festive occasions might cynically explain their being welcomed back into the family during the celebrations, what stands out in the children's retelling of these visits is the enduring recollection of the warmth with which they were greeted. This warmth was less about disrupted relationships than about the children always being missed and relationships constituted anew and less about the money they carried than what their making the trip home from the city represented. Family members, particularly their mothers and younger siblings, would ask them to stay back with a shy tenderness. But these children resisted, saying they could no longer live at home because the city by now held thick traces of their recent past and home appeared dull in comparison.

Their new identity as city dwellers was not governed so much by dominant notions of their marginal status and the 'risk' of their being on the streets as children. Indulged by what their families cherished about them, these street children viewed their continued presence in the city as earning members, who had additionally developed valuable skills to navigate the city while managing to take care of themselves. This caring for themselves was not only about meeting their physical needs and being able to consume but more crucially a cultivation of habits that reflected their immersion in the city of Calcutta. They were quick to discuss how a certain turn of phrase learnt from watching popular films had impressed family members who had little knowledge of its origins and had been entertained by its repeated renderings as part of the repertoire of skills required for urban living. Their bravado did little to mask the visible pride they felt at remaining not only active but esteemed members of their households.

Family members showed little curiosity about the work the children were engaged in on a daily basis, though often their fathers and maternal uncles knew that they lived at the station and worked in the market. Usually fathers would accompany their sons to Sealdah, carrying vegetables for all the children, and spend some time at the shelter chatting with other children and the staff. In discussing their children, fathers pointed to how the child's current life at the station was making him independent, and though they recognized that often the child had still not learnt a skill that would enable him to earn an income when older, the combination of being able to read and earn was viewed as beneficial. Ironically, it was the responsibility that the boy felt towards the family that the fathers stressed each time a staff person complained about their child's wayward behaviour and frequent trips to the market. For the fathers, as it was for the boys, ethics lay in their actual caring for the families by providing the financial help their earnings made possible. Fears of this 'market orientedness' developing into criminal behaviours were allayed by classifying these leanings as temporary, with the fathers recognizing that their children needed to be trained in a particular skill in order to join the informal economy.

At times, the situation of a particular child would prompt parental anxieties about the child's forays into the market. This happened in the case of Salim, a child of ten, who lived on the platform with his younger brother Johir and his parents. His mother, because she worked in the market sorting ginger for a wholesale vendor, was more ambivalent about her children 'stealing' than the father. Her intimate knowledge of the risks, the easy earnings and the absence of job-related skills in this

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type of work made her uneasy about its long-term effects on her children. She would have preferred for Salim and Johir to stop this earning, but their father was debilitated by TB and no longer able to earn a daily wage as a labourer pushing a *thaela*. So instead, Salim's mother became more vigilant and insistent about her children's *lekha-poda* or their attending the literacy classes at the shelter, seeking in this a viable set of job-related skills with which her boys could make a more durable living.

Kinship in the informal economy

Unlike the relations of reciprocity and kinship that one is tied to by virtue of descent and marriage, street children's everyday lives are dominantly signified by the kinship relations they continually craft with newer communities, which are not given at birth. The Sealadah children's initial entry into the dense sociality of the streets was with their work in hotels, tea stalls, hawking wares and running errands for local drug vendors. They recognized the brutal exploitation of these jobs and often discussed in lucid detail dangerous situations from which they had to extricate themselves by either moving away from a particular neighbourhood or paying a large sum of money. In comparison, the 'stealing' during their forays into the market, and to a lesser extent in scavenging, was rationalized as part of the necessary evil of limited avenues available to children to earn an independent income in the city. Paradoxically, the work in the market was cherished because of its transitory nature. Knowledge that this was only a means to an end, an occupation whose expiry date was determined by the children's conspicuousness as they grew older, already framed these jobs as undesirable in the long run. Within this set-up, their fictive kinship networks on the platform were a source of immediate affection, and the boys actively befriended and developed strong ties with families or particular individuals. These families – whose makeshift lives on the platform disclosed harsh realities of the structural exclusions produced by postcolonial development and its continuing modes of primitive accumulation – counted on the boys for some extra money, information about raids and gossip from other platforms at the station. For the boys, being included within the family fold was marked by episodic commitments, like being taken care of while ill, having a special dish cooked for them and being part of a special celebration. They cherished these ties and continually sought to renew them with their loyalty, affection and contributions of vegetables and fish from the market. Serious about the critical role they played as conduits in relaying information to their fictive 'mothers' on the platform, the boys served as an important source of information on

impending evictions, which were enacted with a scheduled frequency at the platform. These unannounced evictions were those in which policemen periodically cleared the platform of its temporary residents, with the ensuing commotion hiding the practised nimbleness that the regularity of these evictions had helped produce. The children's access to news about future raids often served as a comparative measure of their closeness to a police official and helped increase their profile as enterprising and powerful members of the community. Jehangir had often been catapulted to this role by the same policeman who had beaten him at the market.

Frequently, the children's friendships with policemen and ticket checkers had been struck during an earlier period when the children themselves lived on the platform. As 'encroachers' on the station platform the children worked hard to reduce the threat these officers posed by developing some sort of tenuous relationship with them by running errands, buying them cups of tea, sharing jokes and at times even massaging their feet. The boys recognized that the persistence of the power these officers exercised could be subtended by invoking a more familial register and providing small gifts like a packet of bidis. The boys often discussed amongst themselves what services they had provided various police officers on the platform, which policeman was the most receptive to viewing the boys affectionately (with the least amount of favours) and who amongst the officers was best avoided. It was this ability to continually draw upon and construct more durable ties, however compromised these might be, that left open the possibility of everyday hierarchies being read through a different register of recognition. Their membership in the community at the platform was congealed by these small gestures, acts which in their everydayness combined a volatile mix of self-sustenance and enterprise, with their attendant risks both recognized as well as reconciled.

Within their exercise of responsibility, the biological age of these children appeared to be of no particular significance. This point has been developed by Sarah White (2002) in her argument for a 'person-centred' rather than a 'category-centred' approach in considering the distinctiveness of marginal children in the non-west as subjects of development and social analysis. By foregrounding several tensions that underwrite the current construction of the 'child' within children's rights, she states that recognizing age-based relationships as dynamic and transformative would allow for a point of view that considers the boundary between children and adults as flexible. White's arguments make us more aware of shifting hierarchies

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internal to the logic of specific relationships as well as the need to frame these as always under negotiation. Our understanding of street kids as victims gets disrupted if we re-think age-based differences as contextually mediated in these lives and animated by their exercise of responsibility.

Their connectedness to their genealogical and fictive families discloses the children's lives as anything but arbitrary, isolated and indeterminate. It also acknowledges that their lives on the street, while densely lived, are ironically underwritten by the recognition of this situation's temporariness. As the dominant and naturalized idiom, responsibility continually secures these children within meanings, social worlds and futures that are embedded in relationships that are simultaneously supportive and exploitative. The boys' cultivation of networks through reciprocity is alive to recognizing the deceptive footholds that also abound in this space. As a result, they value the honing of intuition and patience as complementary processes. These are often the qualities that mark their recollections of the trial and error of a life sustained by the networks it builds. In their interactions within these networks, they are seldom naïve about power hierarchies but strive to gradually situate these within a reciprocity that binds both parties into recognizing and continually signifying the relationship differently.

Framing street children's lives with 'responsibility' serves not only to open these up to a more capacious reading, but is also an attempt to foreground responsibility more broadly as a key sensibility worth recuperating in our everyday living. The contractual understanding of a citizen's duty, which underlay the promise and inevitability of a 'good life' in liberal societies, has more recently entered an immense crisis as shrinking wages, 'footloose capital' and collapsing infrastructure have become the everyday conditions of late capitalism in the west. Within such an emerging crisis, formulations of social life based on new types of non-sovereign subjective formations are being proposed (Davis and Sarlin, 2012). Street children's abilities to develop forms of attachment, in which their half-archived attunement to the 'call of the other' continually finds fulfilment through reciprocal exchange gestures to this sensibility as fundamentally generative of the meaningfulness of lives. It is the productiveness and durability of meaning and hope embedded in this form of non-sovereign relationality that compels us to learn more conceptually from these lives.

These reciprocal dynamics coalesce differently at various moments in these children's lives allowing them to develop a view of their worlds as always within control while continually open to what fate has in

store. Within these contingencies it is ‘the call of the other’ that works to persistently reduce the precarity that we usually associate with street children. Jehangir’s relationship with the policeman reflected these complexities with its tensions of reciprocity and manipulation. Though difficult to reconcile within a liberal reading of these lives and their hardships, this incident enables us to have a differentiated understanding of the unfolding of children’s rights in postcolonial contexts. In recent times, the postcolonial Indian state has aggressively adopted a child-rights discourse, and the corresponding regimes, institutions and ‘interventions’ have intensified. While the world of ‘responsibility’ continues to constitute the child on the street, it is now increasingly complexly entangled with the networks of ‘street children’ developmental forms and practices. The children themselves are also drawn into the latter and engage with the various dimensions of these networks of representational politics. In the following section I focus on the interplay between these two worlds and how they affect street children’s everyday lives.

Children’s rights as governmentality

In the Indian context several interrelated rationalities appear to have contributed to the current circulation of children’s rights as the new common sense around which to articulate, with renewed urgency, the needs of children. For one, the figure of the child has become the moral touchstone that most glaringly reflects the increased domestic weight, legitimacy and visibility acquired by the comparative measuring of nation states with instruments like the Human Development Index (HDI) and the Millennium Development Goals (MDGs). The taxonomy of nation states that this international comparative register utilizes dramatically discloses India’s ineffectiveness in translating its economic growth into poverty reduction, particularly on well-recognized indices like child nutrition, immunization and schooling. Moreover, its coexistence with a mediatized international visibility effectively means that it both confirms the nation’s current global economic stature and revels in drawing the contrast between luxury lifestyles and the bloated bellies of starving children.⁷ In this phantasmatic tale of India’s global arrival, in which Indian industry’s internationally ascendant role is haunted by the spectre of poverty, the country’s increasingly mobile professional classes have been actively involved in efforts towards improving children’s lives. This not only relates to their self-conscious roles as interlocutors in a global realm but also reflects their more citizen-driven

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interests in policy planning, 'implementation' and voluntary sector work. It also shows willingness on the part of the state to embrace this participation with the technology of public-private partnerships. The multiple haunting by measurement, media and money has served to produce visible processes of correction that are tied to increased concerns about state efficiency in the delivery of existing and new promises of basic sustainability. In the convergence of these tensions, children's rights have emerged as a site of optimism that the Indian state willingly commits itself to in order to renew its claims to combat poverty. The postcolonial state's urgency with regard to children, including the setting up of a whole national agency, not only addresses growing middle-class concerns but also manages to accommodate the enormous global sentimentality around poor children, making it difficult to discern whether its populist overtones are necessarily limited or directed only to the domestic political-public sphere.

Set up in March 2007, fifteen years after India ratified the UNCRC, the National Commission for the Protection of Children's Rights (NCPCR) has emerged as the nodal authority for all issues concerning children. Though it exercises only advisory powers, its ascension as an authoritative national voice on children signals the increasing comfort of the Indian state in adopting a 'rights-based perspective' to characterize all of its legislative and policy interventions on children. The NCPCR addresses an extensive range of children's concerns, which include violations of their rights, reviewing and reporting on existing safeguards for the protection of these rights and their implementation, investigating issues that prevent children from enjoying their rights, inspecting juvenile custodial homes, increasing what it terms as 'rights literacy' or awareness of these rights amongst children, and overseeing the needs of children requiring special care and protection, including children in conflict with the law and marginalized children more generally.⁸ Though not an exhaustive listing of NCPCR's mandate or activities, this brief description of its extensive scope helps provide a sense of the Indian state's robust acceptance of the recent discourse and its efforts to have this discourse become the hegemonic language of violations that affect children as well as the measures to improve these young lives. This is quite unlike the US, for example, where in addition to government unwillingness to ratify the UNCRC, there also exists popular trepidation that this Convention would allow children to sue parents for any infringements of their rights.

In India no such reservations appear to exist. In fact, the embedding of this 'rights' rhetoric within a short span of time and without much

anxiety has often left unexplored the everyday effects, in postcolonial contexts, of the circulation of this new language. The lack of a deeper investigation and a focus instead on ‘implementation’ unwittingly reinforces underlying assumptions of a universal agential subject that the discourse of children’s rights contains. By framing children categorically in terms of their biological immaturity, children’s rights discourse has left largely unexamined the liberal self that is the assumed subject of this discourse. It, therefore, inflects and positions all children worldwide as inherently capable of understanding and acting upon what it means to possess these rights. Given that children worldwide are neither inserted within analogous histories that allow for the formation of similar identities, nor is the creation of individuals into rights-bearing subjects natural or inevitable, the critical difference exercised by the historical constitution of legal subjectivities is crucial to understanding children’s rights in postcolonial contexts.

In India, although the liberal language of citizenship and rights are part of the Indian Constitution, the postcolonial context discloses a very different engagement with these tropes than what circulates in the modern west. As analysed by Chatterjee (2004), citizenship develops chronologically in the modern west from the institution of civic rights in civil society to political rights in the nation state. Given this, the idea of citizenship as an ethical, normative category that implies participation in the sovereignty of the state historically precedes the state’s securing its legitimacy by ensuring the well-being of populations. It is only in the nineteenth and twentieth centuries, with the emergence of an apparatus of welfare provision via the vectors of schooling, health and employment, discussed in relation to children in Chapter 1, that the social comes to be organized in the modern west. However, in former colonies, the creation of nation states was preceded by colonial rule that produced its own technologies of governmentality, which administered colonial subjects while not recognizing them as citizens. The colonial, or as Dirks (2001) has discussed, the ‘ethnographic’ state worked upon native populations using an elaborate apparatus that classified, categorized and enumerated them as population groups for a range of purposes linked to concerns of colonial governmentality, including crime prevention, education and public health (Chatterjee, 2004). The enduring nature of the colonial apparatus of governmentality, which the new nation in large part continued, meant that populations tend to identify with the state in terms of the welfare it makes available in their everyday lives rather than through discourses of individuated citizenship and rights.

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This unfolding of children's rights in the postcolony as the work of governmentality marks a tension, as it not only provides the state with a heightened role in mediating children's assertions of their rights, but it also works to inadvertently privilege the idea of justice for children as exhausted by the state legislating particular provisions of the UNRC. At Sealdah, the weight exercised by this new imaginary of 'children's rights' recast the existing 'harms' done to children as capable of being remedied through legal recourse. The staff's interpretation of Jehangir's reaction to the powerful police functionary as his failure to understand this new language of children's rights was in keeping with this new increased optimism about children's abilities to exercise their rights as framed in terms of their empowerment and, therefore, signalling justice. Jehangir, however, by invoking a different set of relations between him and the policeman attempted to signify an alternate give-and-take that was not about his victimhood. This alternate terrain reflected the radically different rationalizations of biological age that postcolonial capitalism had naturalized. Biological age as a threshold that was inherently negotiable based on the class, caste and gender identity of the child was a perverse reflection of the deformations of a colonial extractive logic, as discussed in Chapter 2, as well as a postcolonial development economy, in which the wealth of a few was predicated in part on the continuing poverty of the masses. Ironically, now it is through an elision of this 'agency' of marginalized children that the moral-political project of the state with regard to children's rights asserts the hegemony of its efforts to improve these lives.

This can be seen in the current work of the NCPCR with its designating 'child laborers, juvenile delinquents, children on railway platforms and internally displaced children' as 'vulnerable'. Its motivation of setting targets around specific reform efforts, the most substantive of which is the Right to Education Act, casts its subjects as yearning to be free of their current lives. The NCPCR's role in making visible the exploitation and brutality in the lives of labouring children has the effect of foreclosing their identities as isolatable children who currently suffer, which is a marked departure from the earlier postcolonial state's reading of these children as tied to their family and community's economic and social contingencies. This mantle of justice on behalf of children that the state assumes with its adoption of a rights-based framework achieves its effect by legitimately abandoning this past reading to signal its efforts anew. Its new rationalizations of isolating the 'child' within a rights framework also critically works to foreclose the very idea of 'rights' into a prescribed set of state-directed

initiatives upon which children are expected to act in order to exercise their rights. Less surprisingly, perhaps, the increasing incorporation of children into the webs of governmentality within postcolonial contexts also mutually intertwines the energies of voluntary sector work on children. There appears to be little to distinguish the efforts of the postcolonial state and the voluntary sector in the current fetishization of a rights-based framework as an urgently needed response to these labouring lives, thereby making a particular state-directed interpretation of children's rights discourse work as the new monolithic common sense on these lives.

On its website, the NCPCR boldly concedes that specific reform efforts will take time, although its discussion of why this is has little to do with the long history of postcolonial accommodations of these children. Instead, its assertions of wanting to set in place 'a larger atmosphere in favour of protection of children's rights, [so] that children who are targeted become visible and gain confidence to access their entitlements' ironically secures this delay in the children's current victimhood and their attendant lack of confidence. The assertions also quite seamlessly tie these children's recognizable and, therefore, legitimate rights-driven actions to their accessing the entitlements made available by the state. Any action taken by children outside of this state-specified frame then automatically gets read as the continued 'rights illiteracy' of marginal children and marks their lack of empowerment. This 'empowerment' now has a defined trajectory, namely, formal schooling with new faith in its capacity to change children's lives. This rights framework is further problematized in the next chapter's detailed discussion of the exclusions that mark this liberatory terrain of elementary education in India. Broadly speaking, there is no disagreement with an increased commitment of the postcolonial state to improve the welfare of marginal children, including providing them access to schools. However, the ways in which the postcolonial state positions itself to both secure the logic of its less than ideal interventions and reads the current lives of these children as always lacking make these interventions less benign, less sentimental and as always requiring greater interrogation beyond what appearances suggest.

Jehangir's self-construction as a member of a community engaged in making a life within the margins, in which figures of authority are more ambivalent and even caring, sits uneasily with the middle-class consent garnered by the state and voluntary agencies for their new interventionary role in children's lives. The domain of critical legal studies has widely discussed how the sphere of the legal, including claims to

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'justice', is often experienced by subaltern communities as regulative and authoritative, and not necessarily emancipatory (Ungar, 1983). This broad recognition that law works unevenly on the powerless and the powerful (Shklar, 1992) also extends to reimagining the compassionate benevolence associated with rights-based interventions in the postcolony. While the discourse of children's rights framed Jehangir as vulnerable in relation to the policeman, he defended the inexactness of his daily life, in which the law was highly interpretable in the world of everyday relations. He did this by pointing to a different idiom, all the time being more than aware of its incompatibility with the legal. This sturdiness of reciprocity and the elusiveness of the legal made the protection offered by a rights discourse as that which appeared to have very narrowly interpreted his everyday life. This is the broad and complicated terrain of the unfolding of children's rights in the postcolony, in which marginal children's exercise of responsibility risks being in conflict with efforts to legitimize their rights through national laws.

Marginal children, like the children at Sealdah, increasingly inhabit this terrain of rights, being at once inside and outside of rights. They are inside because of their being part of an expanding range of pedagogic efforts, including those conducted by the voluntary sector, school enrolment and retention drives amongst 'child labourers' and by the NCPDR – to inform them that they have rights. However, their simultaneously inhabiting dense networks of reciprocity and responsibility makes the sphere of the legal appear hostile, distant and best avoided within everyday lives. The latter was also more broadly a reflection of their subordination within the more lasting structures of caste, class and sexual divisions of labour. This inside–outside positioning of marginal children within a rights discourse, as the following section discusses, produced a canny understanding of the anti-politics of the discourse's current moral circulation and the fiction of realizing its liberal injunctions. This resulted in a surprisingly tactile engagement with this new discourse.

The pedagogic and the performative in children's rights

Arguing for viewing children's rights as a 'living practice', Hanson and Nieuwenhuys (2012) state that rights should be seen as an 'imperfect compromise' negotiated by individuals at a particular point in time, making this only one of several possible interpretations of what rights for children might contain. This 'horizontal approach' recognizes that children's rights could carry many contradictory meanings, thereby imbuing it with a certain indeterminacy that is shaped by children's everyday concerns.

A focus on the pedagogic project that forms part of the emergent landscape of children's rights allows for a tracing of the complex ways in which these children engage, experience and relate to this new discourse and connect it to their everyday lives. Though there were significant overlaps between state identification of exploitative circumstances – like banning children's work in hotels – and the children's more informal recognition of debilitating working conditions, there was also an unregulated excess to their everyday lives that the formal terrain of rights could not accommodate. This was most poignantly evident in the material practices by which children's rights were being translated in the lives of marginalized children – namely, rallies, skits and drawing competitions. Viewed by these children as 'events' whose intended audience was not only they themselves but also the gazing public who required to be informed about children's rights, the following two incidents draw attention to the children's seductive performance of their required identities as 'victims', thereby simultaneously underlining their canny reading of the limits of this liberal discourse.

During a rally to alert Calcutta to the plight of child labourers, the Sealdah children had assembled at the heart of the city with children



Figure 5 This was most poignantly evident in the material practices through which children's rights was being translated in the lives of marginalized children – namely, rallies, skits and drawing competitions.

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from other NGOs who were part of the Calcutta Level Programme of Action (CLPOA). Raju, one of the younger children, had given me his 'good' shirt for safekeeping, and without this he was reluctant to participate in the rally. When I found him, he was wearing the torn red T-shirt he always wore at the station, sulking against a tree. I quickly handed him his shirt, which he immediately changed into and went to join the group. Relieved that his face bore no trace of his earlier moodiness, I looked around and saw that all of the boys from Sealdah were dressed in the clothes usually reserved for special occasions, and in addition, all of them had shoes on instead of the slippers they usually wore. The rally began by passing through large empty roads since it was a Saturday and this was a commercial area of the city. The older boys carried the banners and initiated the chanting of slogans, taking seriously the task assigned to them for about the first fifteen minutes of the rally. As this long line of children wormed its way past residential localities, some curious men, women and children stared out of the windows and doors of their homes, buses and shops. The older boys appeared unfazed by the attention and continually teased each other for being tempted to pick up pieces of metal they found on the road for recycling, which they refrained from doing under the watchful eyes of the staff. They remarked on passers-by and occasionally joined in the chanting of slogans as part of a competition on the decibel level of their voices. Some of the young heads that peered out from apartment windows seemed to be those of children who were employed in households as domestic workers, and one of the older boys commented on their lack of freedom compared to his. The staff pointed out that these domestic workers were also child labourers, but this did not spark any response. The rally ended in an upper-middle-class school in the city where there was a stage set-up for government and NGO officials to make speeches. Pepsi had been poured out into plastic cups for the thirsty children, who gulped down as many glasses as they could.

Having drunk their fill, the children from Sealdah decided to pick up the plastic glasses and empty Pepsi bottles to sell at a recycling shop so they could rent a TV and VCR for the shelter that evening. When the rally concluded, the children were seen picking up as much plastic as they could, collecting them in bags and hauling the bags on their backs to the recycling shop. Not wanting to get their clothes dirty, the older boys supervised this work, while the younger ones were lured into picking up the cups with the promise of getting to watch a free movie that evening. Raju was assigned one of the bags to carry, and he handed me his shirt and shoes for safekeeping. Since the crowd of children brought together by the rally was still present in the school grounds and some of

the speeches by the organizers had just begun, I asked Raju why he did not want to wear his new shirt anymore. He replied, 'My new shirt will get dirty carrying this *bosta* [bag]. No one is going to give me a second look now as I roam the streets scavenging. In the morning it was different – we were out walking as part of a procession, which usually attracts attention, and so I wanted to look my best'.

This incident reveals the ways in which a complicated everydayness disrupts pedagogic efforts to 'improve' these children's understanding of rights. The focus on the everyday as an approach to the terrain of the real workings of the universal requires a tracing of the complex connections between the ways in which marginal communities experience and relate to the normative sphere of the legal, and the historical processes that subtend it. In Raju's sartorial self-absorption the rally appeared unsettling because of the inconsistency between how it officially marked the boys' identities as 'child labourers' and the children's continual attempts to exceed this reading of their lives. It wasn't that these street children were unable to identify with the purpose of the rally. Their enthusiastic chanting of slogans indicated their willingness to perform their identification as child labourers who were aware of their rights as required by the rally. But they continually appeared to resist how this category contained an uncomplicated reading of their lives. By wearing their best clothes they signalled a performative break between this more 'public' event and their daily forays into the street as scavengers. Their pointing to the difference between them and the young domestic help revealed their identification as the better placed amongst their working peers because of the independence they exercised, as street children, in the choice of how to earn as well as how to spend an income. This simultaneous inhabiting and playing with their identities ended when they returned to the street as scavengers. The rally had paradoxically sought to freeze and display their identity as scavengers/child labourers, but for the children their labouring lives resumed only when they had formally finished with the gazing public.

In a similar vein, street children's first-hand experience of exploitation did at times make the liberal promises of rights discourses appear simple-minded and almost fantastical. They were often asked to script their own skits, and a session that was focused on bringing to public attention their rights as children began with the staff person announcing, 'This skit is to show the audience that all children, including all of you, have rights. You have a right to food, to education and to sleeping under a mosquito net'. Shankar, a consummate actor, who was often selected for these street plays, echoed the staff person and said, 'We are

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doing this skit so people really understand the way we live, the way we stay'. Meanwhile Liton, a younger child who, being shy, was seldom included in the cast, asked softly, 'Will they give us money when we tell them that we have rights?' This immediately had all of the boys chattering among themselves wondering how much they might make. The staff person loudly replied, 'NO, all we want is their understanding'. Keen not to lose out on the humour his statement had generated, Liton said, 'I know the perfect first line for the play. I can open the dialogue saying to the rest of the boys, as if my character is not one of them, "Why should the *babus* listen to you? After all they make money from people like you"'. Liton's dialogue serves as an eloquent and intimate reminder of the irony that underwrites children's rights in postcolonial India.

Both incidents highlight street children's recognition of this moment of 'rights' as a transfiguration of the harsh realities of their lives through its fetishization of them as 'children'. The most recent flourishing and consolidation of children's rights in postcolonial India has been in the recent Right to Education Act (2009) which guarantees free and compulsory education for all the country's children from six to fourteen years of age. Securing the presence of working children within the space of the school, as reflected in the sign outside the UNICEF office, circulates as a hopeful and necessary measure; a rational and affective investment not only in individual children's lives but also for the nation and the global development community at large. In the last chapter of the book, I explore this new right by juxtaposing its expectant hopefulness against the schooling experiences of a group of 'child labourers'. The effort is to critically redirect this hopefulness – away from its current global-national circulation – to that which has already accrued in these children's lives and produces their unanticipated engagement with compulsory schooling.

Conclusion

Growing up, Moving on ...

In April 2012, just before leaving Delhi for Calcutta, I got a call from Abbas. The call was surprising, as I had hoped to hear from him more often since he now lived in Delhi. The last time he had called, it had been past midnight. On answering the phone I first heard a Hindi film song playing loudly at the other end before Abbas came on. Quite drunk, he declared that the music I had just heard was from a stereo system he had bought that evening from his earnings. He asked if I recalled a scavenging trip in Calcutta many years ago when we had passed a shop whose window displayed a Phillips music system. He had bought himself a similar piece of equipment and the song I could hear was playing on the system at half its potential volume. In this latest call, however, Abbas was less enthused. In a more matter of fact tone he informed me that this was his last day in Delhi and he was moving back to Calcutta that very evening. I had heard few details about his life in Delhi and his job, most of which verged on the filmic. But now, on the phone, he complained that his trust had been exploited at the job. He would call me from Calcutta, he said, and sure enough a week later a call – from a cell phone number that neither my phone nor I recognized – was from Abbas. He had started a new job in Calcutta at a ‘hookah bar’ that wasn’t too far from where I was staying. It opened for business at around 3 p.m. and he asked if I would come there that afternoon.

Given the blazing mid-afternoon sun on the street, it took some time for our eyes to adjust to the room’s darkness before I spotted Abbas standing behind the counter, animatedly speaking with an older man. Excited to see that I had come with Rimil, my daughter who was seven years old then, he took us to the most well lit-part of this dark space and immediately asked if I had ever been to a hookah bar or knew what

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it meant. The way he worded his sentence, full of information that he was sure I knew little about, brought to mind the platform school where I had first met him, now more than nineteen years ago. He had always been curious about the material realities of people's everyday lives in the US and keen to compare his imagination with my facts. Now the tables had turned at this hookah bar, with my inexperience and his knowledge of new commodities and spaces filling up our conversation. Suddenly, looking at Rimil, he remarked how he was around the same age as her when we had met at Sealdah. He asked rhetorically if I had ever imagined when we first met that he would be speaking English and working in a fancy restaurant like this. In Delhi, he had worked in a travel agency that mainly catered to foreign tourists and had picked up good speaking knowledge of English. His access to airplane travel and hanging out with the foreigners in plush hotels was the fantastical realization of that which as a street child had seemed unreal, impossible and ardently desired. He had decided to quit upon discovering, during a trip to Rajasthan, that the agency was also running a sex racket. Any questions I might have had about what his job entailed, which he had probably sensed, were both confirmed and disproved by this simple assertion of his moral integrity.

In the shifting material landscape of an increasingly commoditized India, jobs in new spaces of affective labour (Hardt, 1999) like the travel agency and this hookah bar were most desirable, serving as a marker of how far a boy like Abbas had come. This travel was about a life of attuning oneself to the intimacy of opportunities in the everyday, some more apparent than others, an accretion of networks of trust, exploitation and the ability to hustle. Abbas's travel disclosed that there was nothing determinate within the starkest of circumstances. His 'atmospheric attunements' or 'modes of living brought into being' (Stewart, 2010) by everyday survival had welded the known effects of class, poverty and postcolonial 'development' to the speculative nature of the present. As an adult employed in one of Calcutta's several emerging spaces of 'affective' forms of labour and consumer citizenship, Abbas's past as a street child appeared unimportant, quite hidden and not of very great consequence. His earlier immersion in manual labour and the lifeworlds at the station appeared as part of a distant and unreal past, a secret well hidden in the casual chic of his appearance at the hookah bar. But it was more than likely that if I had enquired more pointedly, an assemblage of friends, networks and jobs would most likely link quite directly to his earlier life, with their keen attunement to emergent spaces of labour that underlay more speculative efforts to transform the city. However,

what Abbas wished to underscore during our meeting was how far he had travelled from when I first met him at Sealdah's platform. This travel he signalled was multiple. While the presence of my daughter had triggered his retrospective observation on his 'natural' cognitive and physiological development from child to adult, he was keen to foreground the physical distance travelled from home to street, from urban-periphery to city, as well as the psychic travel from roaming and earning on the platform at Sealdah to now having a job at an up-and-happening restaurant in the city. This psychic travel within the urban informal economy from child to adult discloses how little we know about lives like his. We have categories within which we frame him, including 'street child', 'informal economy', 'out of school' and 'migrant labour'. But each of these provides a limited, though important, typecasting of his current circumstances, while all of this information simultaneously under-represents his realities.

This book's attempt has been to undo this typecasting in two ways. First, by discussing these children's everyday lives, including the strength and sustenance gained from real and fictitious families, their networks of reciprocity as well as the messiness of their attachments. All of these help shore up their optimism and produce their aliveness within conditions that would typically fit the descriptor 'abject'. And second, by locating these children's modes of living labour in a long history of colonial and postcolonial capitalism including its fraught, caste/class-specific mediations of biological immaturity. These mediations disentangle 'cultural' descriptions of these children's lives from its relativist innocence fixing attention more squarely on the state. But at the same time these children's 'resilience' might be read as that which is paradoxically produced by a postcolonial space. Their 'resilience' is complexly tied to these children's exercise of responsibility as well as their carving out for themselves future opportunities within the possibilities made available in the present. The postcolonial state's dominant framing of the child within the broader economic, social and cultural fates of their families and communities has contributed to the absence of excessive state regulation in marginal children's lives. This absence allowed for these children's resilience to emerge and flourish within the state's skewed investments in an economy of accumulation and an attendant unwillingness to take stringent action on 'child labour'. This productive contradiction I have argued is what facilitates these marginal children's canny sense of equity and dignity, complicating any easy bifurcation of their lives into 'policy' versus the cultural framing provided by 'multiple childhoods'. The lives of the children at Sealdah station and Rajabazar

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were neither over-determined by socialization practices nor 'innocently' available within an universal reading of biological immaturity. By working with a paradigmatic case of urgent policy intervention, namely, street children, this book's discussion of their dense lifeworlds hopes to show the emptiness of prescriptive imperatives, while at the same time providing critical points of entry for 'policy' to attune itself to these children's sense of dignity. Knowledge of these entry points is less an empirical exercise and more an epistemological one. Its contours lie in acknowledging that the shifting identifications sought by marginal children in the postcolony represent their pursuit of dignity rather than their misshapeness within an exploitative childhood.

This viewpoint opens-up the current moment of transnational donor, voluntary sector and state-directed efforts to ensure these children their 'right to education'. It draws our attention to how the humanist rhetoric on 'futures' and 'opportunities', that this moment skilfully mobilizes, paradoxically sets in place a certain amnesia regarding these children's pasts and their discerning sense of dignity within current lives. It keeps in circulation children's lives as seldom isolated from the class- and caste-based fates of their families, and compels us to interrogate whether the Balkanized attention marginal children currently receive obscures the deteriorating conditions of labour and livelihoods in their families and communities. In the stark absence of good quality schooling, the consolidation of children's 'work' in *mohallas* like Rajabazar were at odds with these children's branding as 'child labourers'. This constellation of difference will without doubt leave its thick traces on the 'right' to education, just as existing practices of production in these communities will encounter new and complex challenges set in place by the horizon of compulsory schooling. This continuing dynamic between school and work does not represent the 'cultural' recalcitrance of communities to enrol their children but rather the substantive ability of these children to be attuned to the world. Through unsettling the contemporary deployment of schooling as a poignant fantasy, this dynamic between school and work simultaneously demands of us to be more alive to the creativity and improvisation of marginalized communities; reading against the grain what appear as their infringements of normative understandings of their child's 'best interests'. It is these infringements, or their inability to correctly fit into new state and civil society dispensations, that reflect the continuing traces of a longer and more protracted history of exclusions.

'Childhoods' in the postcolony unfold within this dense unpredictability of engagement, which is neither foreclosed by processes

of familial and cultural socialization nor easily contained within the empiricism of technocratic vocabularies. We can attend to this density by de-universalizing the categories that we use for research with children in the postcolony – like ‘agency’, ‘rights’, ‘culture’, ‘social’ and ‘political’ – and by recognizing that it was precisely in the colonial form of power that the world of modernity’s universal injunctions – universal rights and the world of reified ‘tradition’ – both became imaginable entities, that too as opposed polarities. In addition, this is a convenient moment to pause and address the more difficult question of whether the insights provided by these street children and child labourers matter only for reasons that concern their own lives. Or might their lives also provide a broader, more conceptual foothold to re-engage existing research on ‘childhoods’ through taking seriously their non-sovereign subjective formations as a desirable mode of being?

‘Responsibility’ as that which marks a majority of children’s lives in the global south has largely been read as a non-modern, though ‘culturally’ acceptable, trope within ‘childhood studies’. Broadening this existing discussion to focus on the ways in which these children’s ‘responsibility’ indexes certain forms of sociality and reciprocity is particularly timely given the current immense crisis of late capitalism in the west with its collapsing infrastructure, shrinking wages, and the frayed security of autonomous lives. In kinship communities like Rajabazar the everyday configurations of responsibility act as a dominant idiom to continually limit and protect members against economic and social vulnerability. As disclosed in the lives of children at Sealdah, practices of responsibility are as much about techniques of the self and are therefore as much agential. Foregrounding responsibility as a key element of non-sovereign subject formation signals that not all agency has to be individuated (Spivak, 2004). Instead, agential practices can be embedded in dense networks of kinship, in community ties, in exercising responsibility as a sensibility rather than as formally learned behaviour. This ‘call of the other’ is simultaneously agential, accommodative, ordinary. Theorizing this ordinariness would allow ‘childhood studies’ to not only recalibrate marginal children’s lives in the non-west but also propel the ‘child-figure’ to becoming more central to current efforts to re-conceptualize autonomous selfhood within the growing fragility of infrastructures in the contemporary west.

However, we must simultaneously guard against these children’s attunement to responsibility being used to justify their future immersion in vocational education. While presenting my research to middle-class audiences in India, there are usually a few people who ‘innocently’

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enquire if it might be best for populations of disenfranchised children, like street children and child labourers, to learn a trade combined with basic literacy skills, treating elementary or secondary education as a terminal degree in these lives. While a move away from the current emphasis on rote learning is critical, replacing this with a plan to stream these children into a less academically rigorous curriculum is, simply put, flagrantly unethical.

Hasmat and his compatriots at Rajabazar had a very definite sense of what schooling would make possible and they easily recognized the failure of the space to meet these expectations. Hasmat's father desired formal schooling to make real the social mobility that is axiomatically associated with it, and in localities like Rajabazar the persistence of this aspiration, despite these communities' less-than-ideal experiences with state efforts, requires us to work with their distrust as constitutive of their optimism. Reading schooling against the grain is about learning to work with this tension between distrust and optimism. The simultaneity of these two registers continually reminds us that it is in fact these children's histories of labour that produce their ingrained sense of equality and their hyper-active faith in the social mobility that formal schooling promises, making them canny about issues of school quality. This tension also offers a counterintuitive reading of the model of autonomy upheld in children's rights discourse disclosing how, in postcolonial contexts, this apparent exercise of 'protection' produces new forms of regulation in the lives of marginal children.

Not unexpectedly perhaps, the Indian state, in a perverse echo of the audience's 'innocence', has since the passing of the 'right to education' reinvigorated efforts around 'vocational education'. These efforts are framed in terms of India's 'demographic dividend', with over 64 per cent of its population estimated to be between the ages of fifteen and fifty-nine by 2021. By contrasting this with the statistic of 40 per cent of the current Indian workforce being 'illiterate' and another 40 per cent composed of school dropouts, 'skill development' has emerged as that which will allow India's youth to take advantage of the opening up of the economy and the growth of the export sector (Chenoy, 2013). This effort to increase the productivity of India's future workforce recognizes that 'skill development' is currently negatively viewed, namely, as being geared towards children unable to cope with formal education. Part of the challenge for the newly formed National Skill Development Corporation, in its creating of a 'skills culture', is to change existing attitudes towards 'skills' as that which, in relation to a 'college degree', has always circulated as the less desirable alternative. As we learned from

the children at Sealdah, becoming *manush* with schooling is explicitly about *not* working with your hands, staying away from the world of *khatni* and being equipped with the knowledge required for salaried employment.

With the children at Sealdah and Rajabazar having seldom been to school, their faith in an iconic social mobility through formal education had a different complexity. This faith is their exercise of equality, knowing that anything less than schooling will not deliver them from the travails of labouring lives. They live with an awareness of the normative hierarchy between ‘mental’ and ‘manual’ labour without allowing the domain of the ‘mental’ to overpower their existing imaginations of what counts as learning, intelligence and knowledge. More broadly speaking their mediation of *khatni* – namely their epistemologically valuing the distinction between the ‘desi’ and the ‘poultry’ chicken while simultaneously recognizing the need for educational certification – might be viewed as echoing the productive tensions in struggles waged by Dalit communities against the caste, class and gendered oppressions contained in ‘manual’ labour. These struggles recognize that the violence of social hierarchies with its pre-determination of capabilities and livelihoods co-exists with the epistemic rejection of these labour-related lifeworlds as the domain of ‘experience’. Experience is namely that which is both unavailable for and incapable of abstract theorization. Through foregrounding both the ordinariness of everyday practices as well as past and present exclusions, Dalit assertions for dignity are alive to the vigilance that constitutional victories demand while continually underlining the difficult political/theoretical challenges that remain. In these current times, when the global consolidation of a new language of ‘children’s rights’ flourishes along with the increasing informalization of the economy, these children’s hegemonic identification with *manush* compels our watchfulness against projects that would simplify and shrink the imagined futures of these children within vocational education. The state and corporate capital’s resolve around these children’s ‘right to education’ needs to keep alive its liberal promise instead of settling on ‘training’ as its benign horizon.

Surviving is a tricky business that social science understands episodically at best. The midnight phone call from Abbas, with music blaring at the other end from a recently bought sound system, was a convincing and eloquent reminder of this. Now as an adult, the subjective scars of a life on the street, and the multiple and inevitable drifts that accumulating networks and new interests had produced, appeared to culminate in him being able to consume and live a lifestyle that had earlier been an impossibility. His ‘desi’ chicken ways appeared to have paid off and

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quite conclusively displaced his assumed 'victimhood'. His being outside of school had produced this determination to succeed. It requires extraordinary capacity to create opportunities within a world where the differentiations between child and adult are circumstantial and negotiable but where this absence of a rigid separation does not automatically map on to an absence of affection and care. In our habitual viewing of these lives as abject, abandoned, precarious and barely surviving, we often overlook labouring children's sense of dignity and canny reading of equality. But it is precisely the sedimented and practised tenacity of these sensibilities that will inform and shape their engagement with their 'right to education' in the years to come.